

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:
SUMMONS

-----X
JONATHAN COLON and JOSHUA CORREA,

Plaintiff(s),

Plaintiff designates New York
County as the place of trial.

- against -

The basis of venue is:
Place of Occurrence

THE CITY OF NEW YORK, COMMISSIONER
RAYMOND KELLY IN THIS OFFICIAL CAPACITY,
DEPUTY INSPECTOR CHRIS MORELLO AS THE
COMMANDING OFFICER OF THE 34TH PRECINCT
AND POLICE OFFICERS "JOHN DOE #s 1-4" (Names to
be fictitious as they are currently unknown),

Plaintiff resides at:
2114 Aqueduct Avenue - #41B
Bronx, New York 10453

County of Bronx

Defendant(s).

-----X
To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
August 13, 2014


MICHAEL BRAVERMAN, ESQ.
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)

JONATHAN COLON and JOSHUA CORREA
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 8697

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**COMMISSIONER RAYMOND KELLY
IN HIS OFFICIAL CAPACITY**

One Police Plaza
New York, New York 10038

**DEPUTY INSPECTOR CHRIS MORELLO AS THE
COMMANDING OFFICER OF THE 34TH PRECINCT**

4295 Broadway
New York, New York 10033

**POLICE OFFICERS "JOHN DOE #s 1-4"
(Names to be fictitious as they are currently unknown),
c/o DEPUTY INSPECTOR CHRIS MORELLO AS THE
COMMANDING OFFICER OF THE 34TH PRECINCT**

4295 Broadway
New York, New York 10033

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JONATHAN COLON and JOSHUA CORREA,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, COMMISSIONER
RAYMOND KELLY IN THIS OFFICIAL CAPACITY,
DEPUTY INSPECTOR CHRIS MORELLO AS THE
COMMANDING OFFICER OF THE 34TH PRECINCT
AND POLICE OFFICERS "JOHN DOE #s 1-4" (Names to
be fictitious as they are currently unknown),

Defendant(s).

-----X

JONATHAN COLON and JOSHUA CORREA, by their attorneys, **GETZ & BRAVERMAN, P.C.**, respectfully alleges as follows:

(1) At all times mentioned, Plaintiffs **JONATHAN COLON and JOSHUA CORREA** were residents of Bronx County, City and State of New York.

(2) At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the Laws of the State of New York.

(3) On or about September 20, 2013 and within ninety (90) days after the claim herein arose, the Plaintiffs served a Notice of Claim in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by mailing certified mail return receipt requested a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

(4) At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

(5) The Plaintiffs have complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and as such hearings were conducted on March 13, 2014.

(6) Upon information and belief, at all times mentioned, Defendants **COMMISSIONER RAYMOND KELLY IN HIS OFFICIAL CAPACITY, DEPUTY INSPECTOR CHRIS MORELLO AS THE COMMANDING OFFICER OF THE 34TH PRECINCT AND POLICE OFFICERS "JOHN DOE #s 1-4" (Names to be fictitious as they are currently unknown)**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

(7) On or about September 8, 2013, at or near 183rd Street, between St. Nicholas Avenue and Audubon Avenue, County of New York, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiffs **JONATHAN COLON and JOSHUA CORREA**, in an excessive manner about his person, causing them physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiffs, nor did the Plaintiffs consent to this illegal touching nor was it privileged by law.

AS AND FOR A FIRST CAUSE OF ACTION

(8) Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "7" with the same force and effect as if more fully set forth herein.

(9) That on or about September 8, 2013, the plaintiffs, wrongfully and falsely accused of the crime(s) of resisting arrest and related offenses thereafter.

(10) That on or about the September 8, 2013, the defendants CITY OF NEW YORK and

NEW YORK CITY POLICE DEPARTMENT, including all the police officers thereof, acting within the scope and authority of their employment and office, wrongfully and falsely accused the plaintiffs, **JONATHAN COLON and JOSHUA CORREA**, of the crime(s) of resisting arrest and related offenses.

(11) That on or about the September 8, 2013, the defendants NEW YORK CITY POLICE DEPARTMENT, including all the police officers thereof, acting within the scope and authority of their employment and office, as they wickedly and maliciously physically assaulted the plaintiffs, **JONATHAN COLON and JOSHUA CORREA**, while being arrested, searched, and detained.

(12) That the said arrest and imprisonment of plaintiff, **JONATHAN COLON and JOSHUA CORREA** was caused by the said defendants, their agents, servants and employees, without legal process, without authority of the law and without any reasonable cause, or belief, that the plaintiffs, **JONATHAN COLON and JOSHUA CORREA**, was in fact guilty of such crimes.

(13) That the said arrest of the plaintiffs herein was caused, allowed and permitted by the defendants herein, their agents, servants and/or employees, wrongfully, unlawfully, against the plaintiffs, without probable or reasonable cause, and on the charges that were made against plaintiffs herein.

(14) That the defendants, their agents, servants and/or employees arrested the plaintiffs, compelled them to go with New York City Police officers pursuant to the instruction and will of the above named defendants, detained and imprisoned plaintiff in a New York State correctional facility, and continued to detain and imprison the plaintiffs, and at other diverse places and times, including, but not limited to, precinct in the station-house in the County of New York, City and State of New York and Central Booking located in the Borough of New York, City and State of New York.

(15) That the said defendants, their agents, servants and/or employees, acting within the scope of their authority and within the scope of their employment, caused the plaintiffs herein to be arrested, detained and imprisoned, even though the defendants, their agents, servants and/or

employees, had the opportunity to know, or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be, arrested, searched, detained and placed in confinement at said locations.

(16) That as a result of the aforesaid accusations made by the said defendants, their agents, servants and employees, acting under the scope of their office and within the scope of their authority, made falsely, publicly, wickedly and maliciously physically assaulting the plaintiffs, **JONATHAN COLON and JOSHUA CORREA**, while he was held in custody by members of the New York City Police Department until the accusations were “non-processed” by the Criminal Court systems of the State of New York, County of New York.

(17) That the defendants, their agents, servants and/or employees, as set forth on the aforementioned date, time and place, intended to cause the arrest, detention and imprisonment of the plaintiffs herein; plaintiffs was conscious of the said arrest, detention, and imprisonment; and that said arrest, detention and imprisonment was not otherwise privileged.

(18) That the aforesaid occurrence, police assault; verbally abused; false arrest; false imprisonment; malicious prosecution; violation of the civil rights; shame and derogation; loss of freedom and detention of the plaintiffs, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence of the part of the plaintiffs herein.

(19) That by reason of the aforesaid, the plaintiffs were physically injured in body and mind, still suffers, and will continue to suffer, great physical and mental pain and anguish, has been subjected to great indignities, humiliation and ridicule; was greatly injured in their credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and was incapacitated from his usual occupation.

(20) That by reason of the aforesaid, the plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A SECOND CAUSE OF ACTION

(21) Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "20", with the same force and effect as if more fully and at length set forth herein.

(22) That on or about the September 8, 2013, and prior and subsequent thereto, in the County of New York, City and State of New York, the defendants, acting within the scope and authority of their office and employment, carelessly, recklessly, maliciously and negligently caused, permitted, allowed, created and instigated the prosecution, and continuing prosecution, of the plaintiff with deliberate indifference.

(23) That the plaintiffs were wholly innocent, and was forced by the defendants, their agents, servants and/or employees, to submit to lengthy Court proceedings.

(24) That on or about the September 8, 2013, and prior and subsequent thereto, the defendants, their agents, servants and employees falsely accused, wickedly and maliciously physically assaulted the plaintiffs, without probable cause or provocation, charged the plaintiffs with various crimes, including felonies, misdemeanors and violations.

(25) That the said prosecution, criminal charges and hearings were instituted and procured by the defendant, their agents, servants and/or employees in this action unlawfully, maliciously and without reasonable or probable cause, with actual malice.

(26) That the aforesaid occurrence, arrest, imprisonment of the plaintiffs and malicious prosecution, was caused solely and wholly by reason of the negligence of the defendants', their agents, servants and/or employees without any negligence on the part of the plaintiffs herein.

(27) That by reason of the aforesaid, the plaintiffs were injured in body and mind, still suffers and, upon information and belief will continue to suffer, great indignities, humiliation and ridicule; was greatly injured to his credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and was incapacitated from his usual occupations. Upon information and

belief, the plaintiff has expended diverse sums of monies, in an effort to extricate himself from the imprisonment, indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction.

(28) That by reason of the aforesaid, the plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

(29) Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "28", with the same force and effect as if more fully set forth herein.

(30) That the defendant, NEW YORK CITY POLICE DEPARTMENT, including all the police officers thereof and POLICE OFFICERS "JOHN DOE #s 1-4" (Names to be fictitious as they are currently unknown), acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they were reckless, careless, and negligent in the manner in which they declared the plaintiffs in violation of the law; in that they caused, permitted and allowed the plaintiffs to be physically assaulted and verbally abused as they pursued, apprehended, detained, prosecuted and imprisoned in violation of his civil rights; in that they used the threat of imprisonment, and actually caused the imprisonment of the plaintiffs, in that they made false accusations on or about September 8, 2013, in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

(31) That the aforesaid occurrence, police assault; verbally abused; false arrest; false imprisonment; malicious prosecution; violation of the civil rights; shame and derogation; loss of freedom and detention of the plaintiffs, was a malicious prosecution, and negligent performance of duties, was caused solely and wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiffs herein.

(32) That by reason of the aforesaid, the plaintiffs were injured in body and mind, still suffers, and upon information and belief will continue to suffer, physical and mental pain and anguish; has been subjected to great indignities, humiliation and ridicule; was greatly injured in his credit and circumstances; was prevented from performing and transacting his necessary affairs and business. Upon information and belief plaintiffs have expended diverse sums of monies and incurred debt, in an effort to extricate himself from the imprisonment, indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements.

AS AND FOR A FOURTH CAUSE OF ACTION

(33) Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "32" inclusive with the same force and effect as if more fully and at length set forth herein.

(34) That the defendants, THE CITY OF NEW YORK were careless, reckless and negligent in hiring and retaining its employees, in that the said defendants' employees lacked the experience, savvy, knowledge, deportment and ability to be employed by the agency herein as the defendant, NEW YORK CITY POLICE DEPARTMENT; including all the police officers thereof and POLICE OFFICERS "JOHN DOE #s 1-4" (Names to be fictitious as they are currently unknown), in that defendant failed to exercise due care and caution in their hiring practices, and in particular, hiring the police officers involved who lacked the mental capacity and the ability to function as employees of the aforementioned defendant; in that the defendants lacked the maturity, sensibility and intelligence to be employed by the defendant; in that the defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said defendants' NEW YORK CITY POLICE DEPARTMENT, employees when they hired them to be employees; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

(35) That the aforesaid occurrence, police assault; verbally abused; false arrest; false imprisonment; malicious prosecution; violation of the civil rights; shame and derogation; loss of freedom and detention of plaintiff, was a malicious prosecution, negligence in performance of duties and

negligence in hiring and retention and the resulting injuries to mind therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiffs.

(36) That by reason of the aforesaid, the plaintiffs were injured in body and mind, and still suffers, and upon information and belief will continue to suffer, great mental pain; has expended and incurred diverse sums of money in an effort to extricate himself from the indignities and humiliation imposed upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction.

(37) That by the reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

(38) Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "37" inclusive with the same force and effect as if more fully and at length set forth herein.

(39) That the defendant NEW YORK CITY POLICE DEPARTMENT, acting within their scope and authority of their office and employment, in their capacity as a law enforcement office, was negligent and careless in the supervision, maintenance and control of police officers under their supervision and more particularly the supervision of the members of the NEW YORK CITY POLICE DEPARTMENT, including all the police officers thereof and POLICE OFFICERS "JOHN DOE #s 1-4" (Names to be fictitious as they are currently unknown), in that the defendants failed to exercise due care and caution in their supervision of same and in particular causing, permitting and allowing police officers under their supervision, and more particularly the defendants' agents, servants, employees and/or licensees, to act in a careless, reckless and negligent manner without administering proper control, discipline and supervision thereby allowing police officers involved herein, to act in an unlawful and illegal manner; in causing, permitting and allowing persons within the employ of the NEW YORK CITY

POLICE DEPARTMENT, including all the police officers thereof, in that the defendants knew, or should have known, of the lack of ability, experience, deportment and maturity of the said defendants police officers under their care, supervision and control and more particularly those police officers with a propensity to act in unlawful and illegal manner; and that said agents, servants and employees failed to properly investigate actions taken by police officers under their care, supervision and control, and were otherwise careless and negligent without any negligence on the part of the plaintiffs herein.

(40) That the aforesaid occurrence, police assault; verbally abused; false arrest; false imprisonment; malicious prosecution; violation of the civil rights; shame and derogation; loss of freedom and detention of plaintiffs, was a malicious prosecution, negligence in performance of duties and negligence in hiring and retention and the resulting injuries to mind therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiffs.

(41) That by reason of the aforesaid, the plaintiffs were injured in body and mind, still suffers and, upon information and belief will continue to suffer, great physical and mental pain and anguish, has been subjected to great indignities, humiliation and ridicule, was greatly injure in his credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and was prevented to perform his usual occupation. Upon information and belief, plaintiffs have expended and incurred diverse sums of money in an effort to extricate himself from the indignities and humiliation imposed upon them by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction.

(42) That by the reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

(43) Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "42" inclusive with the same force and effect as if more fully and at length set forth herein.

(44) That on or about September 8, 2013, in the County of New York, City and State of New York, at which time and place defendants their agents, servants and/or employees and /or licensees, were acting within the scope of their employment, authority and office as part of their regular and official employment as employees for The City of New York and New York City Police Department.

(45) As plaintiffs were lawfully and properly enjoying his right as a citizen of the United States of America, said defendants' employees of New York City Police Department, their agents, servants and/or employees, who having the real and apparent ability to cause imminent bodily harmful and offensive injury, and the power and authority to warrant for the arrest, detention, prosecution and imprisonment of the Plaintiffs, did so threaten these acts upon the plaintiffs, and did so cause the plaintiffs herein to be physically assault, verbally assaulted while being arrested, detained, prosecuted and imprisoned, stripped and searched and in violation of plaintiffs' civil rights; in ailing to recognize, detect and investigate same; in revoking the rights of the plaintiffs herein; in failing to train, monitor, control and/or supervise their agents, servants and/or employees; and in prosecuting and continuing to prosecute the plaintiffs.

(46) That defendants, their agents, servants and employees failed to properly and adequately ascertain that plaintiffs were not in violation of the law and that plaintiffs was detained, prosecuted and imprisoned for an extended period of time, depriving them of their rights and liberties as set forth in the Constitutions of the United States of America and of the State of New York, handcuffed them and threatened plaintiffs with the possible use of firearms and weapons and the use of physical force; in that they continued to detain, prosecute and to imprison, the plaintiffs without any conduct on the part of the plaintiffs to so warrant, to wit:

- a) in that all the actions of the defendants, their agents, servants and/or employees, acting within scope and authority of their employment and

office, committed with the intention to cause economic and mental injury to the plaintiff, arrested, detained, prosecuted and imprisoned the plaintiff without his consent; plaintiff was at all times conscious of his arrest, detainment, prosecution and imprisonment did not consent to the arrest, detainment, prosecution and imprisonment; and the arrest, detainment, prosecution and imprisonment was not otherwise privileged; and

- b) the arrest, detention, prosecution and imprisonment were not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under the color of the statute, ordinances, regulations, customs and usages of the he United States of America, the State of New York, City of New York and County of Bronx, within the scope of their employment and under the authority of their office as employees of The New York City Police Department for said state.
- c) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, caused and unlawful arrest, detention, prosecution and imprisonment of the plaintiff thus depriving him of his freedom and civil rights as guaranteed by the Constitution of the United States of America when they in a willful, wanton, reckless, careless and negligent manner deprived the plaintiff of his due process, liberty and freedom without his consent and with the intention of causing harm and deprivation of his freedom and civil liberties, all without warrant, probable cause whatever; and,
- d) that the defendants, their agents, servants and employees failed to adequately and properly train, supervise, monitor, discipline or in any other way control the behavior and performance of police officers, their agents, servants and/or employees; that in their practices in the exercise as a police officer, their exercise of supervisory functions and their failure to enforce the laws fo the United States of America, the State and City of New York is evidence of the careless and negligent lack of cautious regard for the rights of the public including the plaintiff herein; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals, and reasonable police officers would show in the execution of, and functions of the police officers; and,
- e) the failure of the defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants, in the exercise of their functions; in that their failure to enforce the laws fo the United States of America, the State of New York and the City of New York were carried out carelessly and negligently and without regard for the consequences, so as to display a careless and negligent disregards for the dangers of harm and injury to the citizens of the United State of America, and the State and City of New York including, plaintiff; and,
- f) due to the acts of the defendants, their agents, servants and employees, and the failure of the defendants, to control, discipline, train, monitor, supervise and/or properly hire personnel under their care, supervision and control, and the continued employment of same presents a clear and present danger to the citizens of the United States of a America and the City and State of New York; and,

- g) That the said arrest, detention, prosecution and imprisonment were instituted and procured by the defendant, their agents, servants and employees, under the scope and authority of their office and employment in this action, unlawfully, carelessly and negligently and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the revocation of freedom; hearing and criminal proceedings by the said defendants against the plaintiff was without probable cause with actual malice and was ultimately terminated in favor of the plaintiff, and,
- h) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, permitted the use of policy, and or drafted policy that was violating the Constitutional rights of the above named plaintiff; and, in that each and all of the employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Bronx, and under the authority of their office as police officers for said State, City and County.

(47) Defendants did not have probable cause to physically and verbally assault, arrest, detain, prosecute and imprison the plaintiff before, after or at the time of this incident and deprive plaintiffs of their Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.

(48) As a direct result of the aforesaid actions and conduct of the part of the said defendants, their agents, servants and/or employees, plaintiff was physically and verbally assaulted, while being arrested, detained, prosecuted and imprisoned and was compelled to be arraigned and appear in the Criminal Court system of the City and State of New York, County of New York and to undergo a criminal proceeding(s).

(49) That at all times hereinafter mentioned, the defendants were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations for the New York City Police Department.

(50) That at all times hereinafter mentioned, defendants, CITY OF NEW YORK and NEW

YORK POLICE DEPARTMENT, including all police officers thereof, their agents servants and/or employees were acting pursuant to orders and directives from defendants, and acting within the scope and authority of their employment and office.

(51) That during all times hereinafter mentioned, the defendants, their agents, servants and/or employees, and each of them separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of New York City Police Department and the defendants herein, separately and in concert, engaged in the reckless, careless and negligent conduct herein mentioned to the injury and detriment of the plaintiffs and deprived plaintiffs of their First and Fourteenth Amendments to the Constitution of the State of New York and the laws of the City and State of New York.

(52) The defendants, their agents, servants and/or employees, were employed by the Police Department of the City of New York, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of false arrest, detention, prosecution and imprisonment and that said defendants, their agents, servants and/or employees did not confer due process upon the plaintiff herein, and in denied the rights, privileges and immunities guaranteed plaintiffs and other citizens of the United States of America by the Constitution of the United States of America.

(53) This systematic pattern of conduct consists of a large number of individual acts of violations of plaintiff's civil rights, and other citizens, by employees of New York City Police Department and more particularly the defendant employees, their agents, servants and/or employees, in acting in concert with persons unknown to the plaintiffs and under color of law, and said acts, while carried out under color of law, within the scope and authority of their office and employment, having no justification or excuse in law and are instead reckless, careless and negligent, unrelated to any activity in which police officers may properly, appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

(54) Although defendants knew or should have known of the fact that this pattern of

conduct was carried out by their agents, servants and/or employees, defendants have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

(55) The conduct of the defendants, their agents, servants and/or employees, deprived plaintiffs of the following rights, privileges and immunities secured to them the Constitution of the United States and of the State of New York:

- a) The right of plaintiffs to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments of the Constitution of the United States; and
- b) The right of plaintiffs not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the fourteenth Amendment to the Constitution of the United States.

(56) That by reason of the aforesaid negligence, police assault; verbally abused; false arrest; false imprisonment; malicious prosecution; violation of the civil rights; shame and derogation; loss of freedom and detention of plaintiffs negligent performance of duties, negligent hiring and retention, negligent training and supervision, and violation of civil rights caused by the defendants, their agents, servants and employees, acting within the scope and authority of their office and employment, who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiffs, and compel them to abandon their rights and privileges as provided to them in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the defendants, their agents, servants and employees violated 42 U.S.C. Sec. 1983 in that the defendants, their agents, servants and employees acted as persons who under color of any statute, ordinances, regulation, custom or usage of the City of New York and the State of New York, subjected or caused to be subjected, citizens of the United States of America or other persons within the jurisdiction, particularly the plaintiff thereof to be deprived of their rights, privileges and immunities received by the Constitution and laws of the United States of America and of the State of New York; was subjected to great indignities and humiliation, and pain and distress of mind and was held up to scorn and ridicule,

injured his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging plaintiff.

(57) That the aforesaid occurrence, false arrest and imprisonment of the plaintiffs, malicious prosecution, negligent performance of duties, negligent hiring and retention, negligent supervision and training and violation of civil rights, was cause solely and wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiffs herein.

(58) That by reason of the aforesaid, the plaintiffs were injured in mind and body, still suffers, and upon information and belief, will continue to suffer great physical and mental pain and anguish; has been subjected to great indignities, humiliation and ridicule; was greatly injured in their credit and circumstances; was prevented from performing and transacting their necessary affairs and business; and they were incapacitated from their usual occupation. Upon information and belief, plaintiffs have expended diverse sums of monies, and incurred debt, in an effort to extricate themselves from the imprisonment, indignities and humiliation foisted upon them by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursement and, upon information and belief, will expend further sums in that direction.

(59) That by reason of the aforesaid, the plaintiffs requests the following relief:

- a) Punitive damages in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.
- b) Compensatory damages in the amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

WHEREFORE, plaintiffs demands judgment against the defendants in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction on all Counts of this action, and on the County for punitive damages, and reasonable attorney's fees, together with costs and

disbursements of this action and such other and further relief that this Court may deem just, proper and equitable under the circumstances.

Dated: Bronx, New York
August 13, 2014



MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff
JONATHAN COLON and
JOSHUA CORREA
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No.: 8697

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK)

SS:

COUNTY OF BRONX)

Jonathan Celen, being duly sworn, deposes and says:

I am the PLAINTIFF in the within action. I have read the foregoing Summons + Complaint and know the contents thereof and the same is true to my own knowledge, except as to those matters stated upon information and belief and as to the matters I believe them to be true.

Sworn before me this

13th day of August, 2014

JC
Jonathan Celen

NOTARY PUBLIC
MICHAEL ISA BRAVERMAN
NOTARY PUBLIC, STATE OF NEW YORK
BRONX COUNTY 02BR6035120
Certificate Filed in
Bronx County
Commission Expires 12-27-2014

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK)

SS:

COUNTY OF BRONX)

Joshua Correa, being duly sworn, deposes and says:

I am the PLAINTIFF in the within action. I have read the foregoing Summons & Complaint and know the contents thereof and the same is true to my own knowledge, except as to those matters stated upon information and belief and as to the matters I believe them to be true.

Sworn before me this

13th day of August, 2014

Joshua Correa
Joshua Correa

NOTARY PUBLIC
NOTARY PUBLIC, STATE OF NEW YORK
BRONX COUNTY 02BR6035120
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Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JONATHAN COLON AND JOSHUA CORREA,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, COMMISSIONER RAYMOND KELLY IN HIS OFFICIAL CAPACITY, DEPUTY INSPECTOR CHRIS MORELLO AS THE COMMANDING OFFICER OF THE 34TH PRECINCT and POLICE OFFICERS "JOHN DOES 1-4" (Names to be fictitious as they are currently unknown),

Defendant(s).

SUMMONS AND COMPLAINT

GETZ & BRAVERMAN, P.C.

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